

# KRPAN, et al v SLIGHT, et al

20CV44854

## PLAINTIFF'S MOTION TO ENTER JUDGMENT

This matter involves claims of construction defects brought by Christopher and Julie Krpan as individuals and trustees of the Christopher and Julie Krpan Revocable Living Trust ("Plaintiffs") against a host of Defendants, including Wildwood Properties, Inc. dba Century 21 Sierra Properties ("Wildwood"), Janet Cuslidge ("Cuslidge"), Kimberly Darr ("Darr") (collectively "Wildwood Defendants"), Dave's Plumbing ("Plumbing") and Premier Properties Murphys, Inc. dba Premier Property ("Premier") and Terri Bowman ("Bowman") (collectively "Premier Defendants.")

Now before the Court is Plaintiffs' motion to enter judgment pursuant to Code Civil Procedure section 664.6. The motion is opposed by Wildwood Defendants, Plumbing, and Premier Defendants.

### I. Background

On June 2, 2025, the Court held a mandatory settlement conference. The minute order from that conference reflects that a settlement was reached and the following terms were expressly stated:

Plaintiffs are to be paid \$225,000.00 which will be apportioned as follows:

\$100,000.00 to be paid by Premier Properties Murphys, Inc.; \$75,000 payable by Wildwood Properties, Inc.; \$25,000.00 payable by Core Inspection Services; \$25,000.00 payable by Dave's Plumbing. The payment of \$225,000.00 shall be made within 30 calendar days. Upon receipt of the payment Plaintiffs will dismiss all parties with prejudice. Each party shall bear their own attorneys' fees and costs. Mr. Miller will prepare the Settlement Agreement.

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A court reporter then came in to the courtroom and transcribed further proceedings. All parties were asked and answered in the affirmative that they agreed with the terms of this settlement. Court then adopted the agreement and on the record confirmed the agreement was fully enforceable under Code of Civil Procedure Section 664.6.

After the conference, Mr. Miller circulated a proposed agreement (“Proposed Agreement.”) According to Plaintiffs, the Proposed Agreement contained the salient material terms of the agreement reached in Court (“Court Agreement.”) However, Plaintiffs contend that the Proposed Agreement also contained numerous other provisions not contained in the Court Settlement Agreement. Plaintiffs assert that some of those added terms, though new, were not objectionable (Paragraphs 5-20.) Plaintiffs take issue, however, with paragraph 21 (“Confidentiality”) and paragraph 22 (“Disparagement”) which according to Plaintiff added new material terms which were unilaterally inserted into the written draft prepared by Mr. Miller without any prior discussion at the mandatory settlement conference in this case and without Plaintiffs’ prior or subsequent agreement.” (Mtn p. 5.)

Apparently, the parties have not been able to agree upon a finalized written settlement agreement. The instant motion for judgment on the Court Agreement is now before the Court.

## **II. Legal Standard**

Cal. Civ. Proc. Code § 664.6(a) provides that:

If parties to pending litigation stipulate, . . . orally before the court, for settlement of the case, or part thereof, the court, upon motion, may enter judgment pursuant to the terms of the settlement. If the parties to the settlement agreement or their counsel stipulate in writing or orally before the court, the court may dismiss the case as to the settling parties without prejudice and retain jurisdiction over the parties to enforce the settlement until performance in full of the terms of the settlement.

“On a motion to enforce, the court must determine whether the settlement agreement is valid and binding. The court assesses whether the material terms of the settlement were reasonably well defined and certain, and whether the parties expressly acknowledged that they understood and agreed to be bound by those terms.” (*Estate of Jones* (2022) 82 Cal.App.5th 948, 952.) A section 664.6 motion may be used “even when issues relating to the binding nature or terms of the settlement are in dispute, because, in ruling upon the motion, the trial court is empowered to resolve these disputed issues and ultimately determine whether the parties reached a binding mutual accord as to the material terms.” (*In re Marriage of Assemi* (1994) 7 Cal.4th 896, 905.)

### III. Analysis

At issue herein is whether the Court Agreement reflected all the terms of the settlement and whether the parties, in reaching the Court Agreement, agreed that additional terms might be added during the writing of the final written agreement.

“It is undisputed that a stipulated settlement presented orally by the party litigants or their counsel to a judge, in the course of a settlement conference supervised by that judge, satisfies the ‘before the court’ requirement of section 664.6.”(*Assemi*, supra 7 Cal.4th at 906.) The Court Agreement reflects that the parties reached agreement on the material terms of the settlement, specifically: the amount owed to Plaintiff and the liabilities of each of the settling defendants. The Court specifically asked the parties if they agreed with the settlement and understood it. The record reflects that the parties all agreed.

The opposing Defendants argue that the inclusion in the Minute Order noting that Mr. Miller would prepare the written agreement means that the Court (and all parties) knew that the actual settlement agreement would contain additional terms. While the written agreement to be prepared by Mr. Miller would certainly be expected to contain more language than the Minute Order, there could not have been a reasonable expectation on the settling parties that the final agreement would contain additional *material* terms. If the parties are in continued heated debate about the propriety of including confidentiality and non-disclosure clauses, this suggests that such terms were “material” and should have been addressed at the conference. However, none of the Defendants requested that those material terms be included in the Court’s record during the settlement.

However, the Court is also cognizant of the rationale behind many of the Defendants’ agreement to settle, rather than have judgment entered against them. Thus, entering judgment against Defendants rather than enforcing the terms of the agreement would not reflect the goals behind settling.

Accordingly, the Court orders that Mr. Miller prepare a written settlement agreement which reflects the material terms of the settlement as set forth in the Minute Order. Specifically: 1) Plaintiffs are to be paid \$225,000.00; 2) Payments are made as follows:

\$100,000.00 to be paid by Premier Properties Murphys, Inc.; \$75,000 payable by Wildwood Properties, Inc.; \$25,000.00 payable by Core Inspection Services; \$25,000.00 payable by Dave’s Plumbing; 3) The payment of \$225,000.00 shall be made within 30 calendar days; 4) upon receipt of the payment Plaintiffs will dismiss all parties with prejudice; 5) each party shall bear their own attorneys’ fees and costs.

Additionally, paragraphs 5-20 in the Proposed Agreement are to also be included in the final written agreement in light of plaintiffs' acknowledgement that these terms were not objectionable. However, the Court finds the added "Confidentiality" and "Disparagement" paragraphs are material and could easily have been raised at the MSC but were not and therefore are NOT to be included in the written settlement agreement. no other disputed terms which were not set forth and agreed to at the conference shall be included.

The Court expects the revised settlement agreement will be signed by all parties and all necessary dismissals will be filed prior to OSC re Dismissal on March 4, 2026, at 1:30 p.m. in Dept. 4. In the event that the agreement remains unsigned and the matter has not been fully dismissed by said date, the Court will re-entertain a refiled Plaintiffs' motion for judgment.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

# **CASEM, et al v FOUST**

**24CV47471**

## **DEFENDANT'S MOTIONS TO COMPEL ANSWERS TO SPECIAL INTERROGATORIES**

This case involves claims of negligence with regards to electrical work performed on real property and ensuing damages after a fire. Steve Casem and Wanda Casem ("Plaintiffs") bring causes of action for negligence and violation of Civil Code section 1941 against David Foust ("Defendant.") Now before the Court are two motions to compel discovery responses filed by Defendant.

The Motion does not comply with Local Rule 3.3.7. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

3.3.7 Tentative Rulings (Repealed Eff 7/1/06, As amended 1/1/18) All parties appearing on the Law and Motion calendar shall utilize the tentative ruling system. Tentative Rulings are available by 2:00 p.m. on the court day preceding the scheduled hearing and can be accessed either through the court's website or by telephoning 209-754-6285. The tentative ruling shall become the ruling of the court, unless a party desiring to be heard so advises the Court no later than 4:00 p.m. on the court day preceding the hearing including advising that all other sides have been notified of the intention to appear by calling 209-754-6285. Where appearance has been requested or invited by the Court, all argument and evidence is limited pursuant to Local Rule 3.3. All matters noticed for the Law & Motion calendar shall include the following language in the notice:

**Pursuant to Local Rule 3.3.7, the Court will make a tentative ruling on the merits of this matter by 2:00 p.m. the court day before the hearing. The complete text of the tentative ruling may be accessed on the Court's website or by calling 209-754-6285 and listening to the recorded tentative ruling. If you do not call all other parties and the Court by 4:00 p.m. the**